TREVOR KADZIBONDE
versus
THE STATE

HIGH COURT OF ZIMBABWE
FOROMA J
HARARE; 28 January and 10 March 2026

Criminal Chamber

Applicant in person
Mr *F I Nyahunzvi,* for the state

FOROMA J: Application for (1) Condonation of late noting of appeal and (2) leave to prosecute appeal in person.

This matter came before me as an application for condonation of late filing of a notice of appeal and an application for leave to prosecute the appeal (to be noted) in person. The application was not opposed by the respondent who filed a response to the application to the following effect – "Response to An Application For Condonation For Late Noting of an appeal and Leave to Prosecute an Appeal in Person.

(1) The applicant filed his Notice of Appeal on time and the appeal is pending before this Honourable Court.
(2) The respondent is thus not opposed to him being granted leave to prosecute his appeal in person.

Dated at Harare this 27th day of January 2026.

Counsel for the respondent

At the hearing of the applicant's application it was agreed with the consent of the respondent that I prepare a judgment to be circulated to all Magistrates Court Centres and High Court Stations as a guide on how appeals by unrepresented litigants (also referred to as self actors) should be processed in accordance with the procedure stipulated by the High Court Rules 2021 SI 202/2021. This was after it had been observed that the application by the applicant especially for leave to prosecute an appeal in person had been mishandled by both the Clerk of

the court *a quo* and also the Registrar of this court resulting in a waste of valuable court's time and unnecessary inconvenience to litigants who may not be to blame for official ineptitude.

The Starting point for an unrepresented litigant seeking to note an appeal against both conviction and sentence is r 96 of the High Court Rules aforesaid. Rule 96(5) is pertinent and it is reproduced for the avoidance of doubt –

> "(5) The prosecution and finalization of all appeals in terms of these rules especially any appeal other that an appeal by the Prosecutor General in terms of para (a) of s 61 of [*Chapter 7:10*] relating to a case in which the convicted person has received an unsuspended sentence shall be treated by all persons concerned as a matter of urgency-" (the underlining is for the purpose of emphasis).

Rule 101 of the High Court Rules deals with appeals against conviction only or conviction and sentence by the convicted person in person. This is the rule whose enforcement implementation or application with High Court and Magistrate Court pays little regard to r 95 aforesaid.

Rule 101(2) provides as follows- (2) The appellant shall within ten days of the passing of sentence note his or her appeal by lodging with the clerk of the court a notice in septuplicate.

(a) Setting out clearly and specifically the grounds of appeal and giving for the purpose of service the address of the appellant; and

(b) Stating that the appellant intends to prosecute the appeal in person once again the underlining for emphasis. While it may be regarded as obiter it is worth emphasizing that failure to comply with r 101(2) (b) renders the notice of appeal invalid and thus a nullity.

Once an unrepresented litigant has correctly complied with r 101(2) the clerk of court is obliged to ensure that certain steps are taken towards processing the appeal without delay and these are (i) the clerk of court notifies the presiding Magistrate whose judgment has been appealed against of the noting of the appeal so that the magistrate delivers to the clerk of court a statement containing any comments which he or she may wish to make on the grounds of appeal in terms of r 101(3).

(ii) as part of the processing of the appeal the clerk of court on receipt of any statement referred to in sub-rule (3) and in any event not later than five days after the noting of the appeal in terms of subrule (2) shall send to the registrar of the High Court the record of the proceedings of the case together with any statement referred to in subrule (3) – please note the proviso to

subrule (4) authorises the clerk of court to sent to the registrar the manuscript notes of evidence. There is no requirement at this stage to type the case record before sending the record to the registrar-thus no delay should be attributable to the need to type the record before sending the record to the registrar.

The registrar is obliged to place/lay the record received from the clerk of court referred to in this subrule (4) before a judge of the High Court. This is done so that the judge determines whether the appellant should be granted leave or certificate to prosecute the appeal in person in terms of s 36(6) of the High Court Act [*Chapter 7:06*].

In terms of subrule (6) of r 102 once the judge grants appellant a certificate to prosecute the appeal in person (a certificate in terms of subsection (1) of s 36 of the High Court Act [*Chapter 7.06*](a) the registrar is obliged to notify the clerk of court immediately and send him or her all the documents relating to the matter (the underlining is for emphasis to ensure the urgency referred to in r 96(5) aforesaid is not lost) and (b) the clerk of court shall notify the appellant of the granting of such certificate- the underlining is to emphasise the importance of the need to communicate the result of the judge's consideration of the application for a certificate in terms of s 36(1) of the High Court Act aforesaid.

Subrule (7) imposes on the registrar the obligation to inform both the clerk of court and the appellant of the judge's refusal to grant the certificate to prosecute the appeal in person in terms of s 36(1) of the High Court Act.

It is important to highlight that once the clerk of court has been notified by the registrar of the grant of the certificate authorising appellant to prosecute the appeal in person he should (i) give instructions for the preparation of the record of appeal and (ii) notify the appellant of the grant of such certificate.

It is also important to underscore the importance of complying with r 102(7) by the registrar as the consequences of such refusal to grant leave to prosecute the appeal in person is that the appeal will lapse if the appellant does not follow the procedure specified in r 104(1). For the avoidance of doubt the appeal will lapse if within 10 days of notification by the Registrar that leave to prosecute the appeal in person has been refused by the judge the appellant does not (a) deposit with the clerk of court the cost as estimated by such clerk of one certified copy of the record in the case concerned and (b) give a written undertaking/assurance to the clerk of court

that he or she will make arrangements for his or her legal representation at the hearing of the appeal.

The rules impose an obligation on the Registrar of the High Court to notify an appellant that the registrar has received the record of appeal from the clerk of court albeit not expressly. This obligation is implied in the proviso to subrule 104 (2)(b) which we reproduce for the avoidance of doubt – it reads as follows "Provided that unless within five days of the record being lodged with the registrar the appellant satisfies the registrar that he or she made final arrangements for his or her legal representation at the hearing of the appeal the appeal shall lapse."

Experience has shown that the clerks of magistrates court and the office of the registrar of the High Court quite often overlook complying with the foregoing procedure with the result that the unrepresented litigants suffer undue prejudice in that many will turn up at the hearing of the appeal only to experience further delays in the determination of their appeal as at the hearing of the appeal, the appeal court will invariably decline to hear an appellant who is unable to produce the certificate required in terms of s 36(1) of the High Court Act [*Chapter 7:10*] with the result that their appeals get removed from the roll in order for the appellant to produce proof of compliance with s 36(1). Should that happen then clearly the fault is not appellant's but that of the registrar's office which will have pre-maturely set down the appeal for hearing without complying with the rules herein above. The aforesaid removal of the matter from the roll often cannot be successfully challenged by the unrepresented litigant who is least equipped to point to the fault of either the clerk of court or the registrar or both in failing to observe the peremptory provisions of the rules on the processing of appeals referred to herein above.

In the interest of ensuring compliance with r 96(5) aforesaid this judgment should be circulated to all High Court Registries (Stations) as well as the Magistrates Court Centres for guidance. At the hearing of this application I directed that the appeal had not lapsed and directed that the applicant should approach the registrar of the High Court to ensure that his notice of appeal which was regularly and correctly noted be properly processed.

Ex abundante cautela the office of the registrar and the clerks of court are reminded to treat the processing of the appellant's appeal as urgent in terms of r 96(5) aforesaid.

FOROMA J:…….

National Prosecuting Authority Harare, respondent's legal practitioners